EU top court overturns two Ryanair victories in state aid cases

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By Tommaso Lecca · Nov 5, 2026, 11:15 AM · View in your browser

The European Court of Justice on Thursday overturned two lower court rulings that had sided with Ryanair by annulling European Commission approvals of state aid granted to KLM and Condor during the Covid pandemic.

The Commission approved €3.4 billion in Dutch state aid for KLM in 2020 and €321 million in German restructuring aid for Condor in 2021. Ryanair challenged both decisions in court.

The EU General Court annulled the approvals. In KLM's case, the court found in 2020 that the Commission had wrongly excluded other companies in the Air France-KLM group from the beneficiaries of the aid. In Condor's case, it concluded in 2024 that the Commission should have opened a formal investigation before approving the support.

Following the first ruling on KLM, the Commission adopted a new decision declaring the state aid compatible with EU rules, but the General Court also annulled this second approval.

The Court of Justice on Thursday set aside the lower court judgment on the second KLM approval, dismissing part of Ryanair's action and referring the case back to the General Court to examine arguments it had not addressed in its original ruling. According to the judges, the lower court "substituted its own assessment for that of the Commission."

The Court of Justice also overturned the General Court's judgment on Condor's aid and dismissed Ryanair's challenge in its entirety. The lower court "erred in law" in holding that the Commission had failed to assess whether the aid met the requirement of adequate burden sharing.

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